

1240BE26Q0059 Central Coast Ranger District Janitor Services

Company Name _____

Company Authorized Representative _____

Address _____

Telephone number _____

Email _____

SAM Unique Entity Identifier (UEI) _____

Schedule of items:

ITEM NO.	SERVICE	QTY	UNIT	UNIT PRICE	AMOUNT
0001	Base Period 6/1/2026 -12/31/2026	7	MO	\$ _____	\$ _____
1001	Option 1 -1/1/2027 – 12/31/2027	12	MO	\$ _____	\$ _____
2001	Option 2 -1/1/2028 – 12/31/2028	12	MO	\$ _____	\$ _____
3001	Option 3 -1/1/2029 – 12/31/2029	12	MO	\$ _____	\$ _____
4001	Option 4 -1/1/2030 – 12/31/2030	12	MO	\$ _____	\$ _____

TOTAL ITEMS \$ _____

Schedule Notes:

- 1. A site visit is highly recommended. Please contact the following Justin Gerding to schedule a date and time to visit the site.**

Justin Gerding justin.gerding@usda.gov p: 541-563-8422

2. Contractor MUST BE registered online at www.sam.gov and be ACTIVE. Contractor with “Inactive” status will be considered non-responsive. System for Award Management (SAM). See FAR 52.212-4 (t) and Online Representations and Certifications Applications (ORCA) – See FAR clause 52.212-3. Contractor must also have an www.IPP.gov account to submit invoices. <https://www.ipp.gov/vendors/enrollment-vendors.htm>

SECTION 1

1.1 GENERAL

This solicitation contains a work statement for a performance-based service, this means that the Government has described WHAT is to be accomplished, not HOW to accomplish it, and states a basis for determining whether the finished work meets the Government quality requirements. It does not state detailed procedures for accomplishing the requirement unless there are safety, security or communication requirements.

It is the responsibility of the Contractor to ensure that the necessary hours that it will take to meet the performance standards specified are built into their pricing.

The Contractor will be required to maintain a quality control program to ensure that the requirements of this contract are met. This program will be created to identify and correct deficiencies in the quality of services before performance becomes unacceptable.

It is the scope of this contract to secure janitorial cleaning services for Government Offices on the U.S. Forest Service Administrative site in strict compliance with the terms, specifications, conditions, and provisions contained herein. The contractor will furnish all labor, equipment, supervision, transportation, supplies (except those listed under Government furnished), and incidentals necessary to complete the work as specified.

The regular cleaning services will be performed at frequencies determined by the Government. Performance will be based on the Government's evaluation of the results.

1.2 PROJECT LOCATION & DESCRIPTION

Location: The project is located on the U.S. Forest Service Administrative site, Central Coast Ranger Station, Waldport, Oregon.

Description: The U.S. Forest Service Administrative site, Central Coast Ranger Station, 1130 Forestry Lane, Waldport, OR 97394.

The **Administrative Office** building is a two-story structure with 6 entrances. There are 6 restrooms at the Administrative Office. The building area is 10,600 square feet and is occupied year-round.

The **Lighthouse Room** is a one-story structure with 2 entrances. There is 1 restroom with a shower. This building area is 4,400 square feet and is occupied year-round.

The **Fire Cache Office** is a one-story structure with 1 entrance and 1 restroom. This building is 310 square feet and is occupied year-round.

The **Tech Room Office** is a one-story structure with 1 entrance and 1 restroom. This building has a 30 square feet bathroom to clean only and is occupied year-round.

1.3 LICENSES AND INSURANCE

The Contractor will obtain necessary licenses and insurance needed to perform this contract.

SECTION 2 PERFORMANCE STANDARDS AND GUIDELINE REQUIREMENTS

The Contractor will ensure that the building presents an overall appearance of cleanliness. The Contractor will provide sufficient supplies, materials and equipment to adequately maintain the premises at an acceptable level of cleaning that is consistent with comparable industry standards for this type of contract. The following guidelines describe what is considered to be the normal industry quality and performance standards for this type of contract.

The following guidelines are for reference only and final results will be the determining factor for the success or failure of this contract. The definition of clean is to remove dirt, water streaks, gum, grease, tar, or any other extraneous matter from all surfaces or objects in order to present an overall appearance of cleanliness.

Performance will be based on the Contractor's effort in meeting the performance and quality standards, not the method of performance.

1. Glass/mirror surfaces and coverings will be clean and free of obvious dirt, dust, streaks and smudges.
2. Furniture and all surfaces less than 70 inches high will be free of obvious dust and dirt. Items on desks or other work areas are not to be disturbed.
3. All carpets will be clean and free of dust, dirt, debris and obvious spots and stains. Carpet spotting will be accomplished as needed. All exposed carpets will be shampooed twice a year with a one week notification prior to starting. A bonnet type shampoo cleaner, hot water extraction or other acceptable method of carpet cleaning will be used as needed to accomplish performance standards.
4. Resilient flooring will be maintained at a high level of luster, free of all types of marks.
5. All other flooring will be free of dirt, debris and foreign material and maintain a high level of luster (buffing, stripping and waxing are included in the cost of this contract).
6. Drinking fountains will be cleaned and free of watermarks and other debris or encrustation. Drinking fountains will be maintained at a high level of sanitation.
7. All trash will be collected from the administrative office building and Lighthouse building and will be removed to the designated on-site location.
8. Restrooms will be cleaned and disinfected to maintain fixtures at a high level of shine and cleanliness.
9. Floors will be sanitized and maintained to ensure that there is not a buildup of dirt, debris

or bacteria. Partitions and walls will be free of obvious dirt, graffiti, dust or other extraneous matter. Paper products will be replenished as needed to maintain an adequate supply at all times.

10. Food service, break areas and hallways will be cleaned.
11. Metal and wood building surfaces will be cleaned and polished regularly to obtain a uniform luster and to protect the wood or metal.
12. Railings, risers, ledges, grills and other surrounding areas will be free of obvious dirt, dust, stains, debris and other extraneous matter.
13. Venetian blinds will have cords and both sides of blind slats free of obvious dust, dirt grime and water spots.
14. Walls and high cleaning surfaces above 70 inches will be free of obvious dust, cobwebs, or any other extraneous matter (interior only).
15. All other space not specifically mentioned and covered by this contract will be free of obvious dirt, debris, dust, and present an overall appearance of cleanliness.
16. Window and glass (includes interior windows in reception area, lunch room, hallways and exterior entrance door glass) will be clean, free of obvious dirt, grime, streaks, cloudiness and water spots. Surrounding areas will be free of standing water, drips or watermarks.
17. All Interior/Exterior windows will be cleaned twice a year (May/November), with a one week notification prior to starting, except the Reception Area will follow 4.1 Services to be Performed – j.
18. All entranceways (8) into the offices will be kept clean including the ceiling over the doorways and the inside the cement wall.
19. All other space not specifically mentioned and covered by this contract will be free of obvious dirt, debris, dust, and present an overall appearance of cleanliness.

2.2 SERVICE CALLS

A service call is a report by the COR or the Inspectors (appointed by the COR) of a cleaning and/or related maintenance problems, and the Contractor's subsequent response to, and correction of the problem. The Contractor will develop and implement a system to receive, record, respond, and track all service calls, trouble calls, or other operational problems.

The Contractor will be responsible for all service calls that pertain to this contract such as no paper towels, garbage overflowing, spot cleaning or vacuuming needed, water spills and flood, etc. The Contractor will respond promptly to all service calls and complete the work required

within four (4) hours. In those circumstances where a service call cannot be resolved within 4 hours due to circumstances beyond the Contractor's control, the Contractor will immediately notify the COR of the time and date corrective action will be completed and the reason it cannot be accomplished in a timely manner.

Service Call Log - Deficiency Reports

The Contractor will submit deficiency reports to the Service call log daily, as the deficiency occurs or is reported. Deficiency reports should be addressing those areas not cleaned and the reason for not cleaning them. Deficiencies include, but are not limited to the following: deficiencies in building equipment or damage to the building such as defective ballast; missing/broken/inoperable soap dispensers; stopped-up urinals or commodes; inadequate government provided supplies. Likewise, the government will use the log to report concerns to the janitorial staff as described in clause Government Inspection.

SECTION 3 CONTRACTOR FURNISHED UNIQUE SERVICES, ITEMS, PROPERTY, DATA, ETC.

3.1 BEYOND CUSTOMARY CLEANING

Any situation requiring cleaning services beyond those normally encountered in routine cleaning work will be considered "beyond customary cleaning". Situations requiring this type of cleaning will be referred to the Contracting Officer or COR prior to commencing work. If the Contracting Officer determines that the situation requires extra effort on the part of the Contractor, equitable reimbursement will be provided to the Contractor for the level of effort over and above that normally required, (e.g. fire or flood damage, construction work, etc.). Residue from relocating furniture or litter left from meetings or routine gatherings are not considered beyond customary cleaning.

SECTION 4 TASKS AND CRITICAL SUBTASKS

4.1 CLEANING SCHEDULE

Work Days and Hours: When required, cleaning will commence Tuesday, Thursday, and Saturday after the hours of 4:30 p.m. and to be completed by 6:00 a.m. the next day. No Work will be performed between 6:00 a.m. and 4:30 p.m. on normal Federal workdays. The Contractor may work on weekends and Federal holidays without restrictions to hours provided advance arrangement with the COR is made.

Nothing in this part will be construed to take away any of the Government's rights under the Suspension of Work Clause (52.242-14).

The following services will be performed three times a week (Tuesday, Thursday, and Saturday) year-round for all buildings.

- a. Sweep or vacuum entire floor, stairs, and rugs.

- b. Wet mop all non-carpeted areas.
- c. Empty all waste containers.
- d. Empty all recycle containers.
- e. Perform a thorough cleaning of all restrooms in the Administrative Office, Lighthouse Room, and Fire Cache. Disinfecting all toilets, sinks, countertops, floors and mirrors assuring that all surfaces are clean and sanitized. Check and replace deodorizer in urinals as needed.
- f. Refill toilet paper, hand towel and soap dispensers, keeping them at least half full at all times.
- g. Clean sink, floor, tables, microwave and countertops of coffee room. (Administrative Office)
- h. Clean exterior entranceways, sweep main walkways, remove cobwebs from light fixtures/doorways and remove litter.
- i. Clean stainless steel drinking fountains. (Administrative Office, Lighthouse Room, and Fire Cache)
- j. Clean and disinfect receptionist area including front desk counter and furniture. Clean inside of 1st floor windows and both sides of glass doors in reception area and foyer. Clean glass windows and doors in the Lighthouse Room.
- k. Clean conference tables in the Lighthouse Room and Administrative Office. Clean around papers and items left behind on conference tables. Stack the chairs on conference tables once clean, so floor can be thoroughly clean or vacuumed.
- l. Wash handrails to remove accumulated grime.

The following services will be performed weekly (Saturday):

Tech Room Cleaning

- a. Garbage can at entrance emptied
- b. Bathroom cleaned to contract specifications
- c. Bathroom supplies restocked

The following services will be performed once each month along with daily cleaning:

- a. Spot clean carpets, including stairway landings.
- b. Perform a thorough cleaning of the shower facility in the Lighthouse Room. Disinfect the shower, bathroom fixtures and floor.
- c. Clean fingerprint marks and other spots from doors, interior windows, restroom stalls, walls, and hallways.
- d. Dust all furniture surfaces including desks, tables, file cabinets, windowsills, telephone counters, ledges, bookshelves and chairs. Pick up phones, file baskets, and calculators to dust underneath them. Do not manipulate stacks of paperwork.
- e. Dust all computers, monitors and keyboards.
- f. Remove accumulated dust and cobwebs from the walls and light fixtures.
- g. Dust walls, woodwork, high ledges, and light fixtures insuring that cobwebs are removed from corners, light fixtures and window casings and doorways.
- h. Wipe and clean mop floor boards, doorframes, and window sills.

The following services will be performed once every six months along with daily cleaning:

- a. Vacuum all offices with hose crevice tool around electrical cords, telephone cables, computer tables, and in corners to remove lint, dust and other debris, which has not been removed through routine dusting.
- b. Light fixtures and air supply and return ducts in hallways, restrooms and offices will be vacuumed and washed.
- c. Clean inside and outside of all windows in May and November.
- d. A thorough shampooing and deep stain removal will be performed **in May and November**.

Clean Lighthouse Room floor tiles with approved industry standards for Terra Cotta tiles, Contractor will notify COR with approved cleaning method.

4.2 CONTRACTOR FURNISHED MATERIAL AND SERVICES

Contractor will furnish all labor, equipment, supplies, materials, supervision, transportation, employee training and incidentals, except those listed under Government furnished, necessary to perform janitorial services in accordance with the terms, conditions and specifications herein.

Supplies and materials will include but not limited to paper towels, quality 2-ply toilet tissue, hand soaps, cleansers, window cleaners, furniture polish/wax, and trash can liners. These supplies and materials will be of a quality and type customarily utilized by other Contractors engaged in the profession of providing janitorial services. The products utilized will comply with biobased and/or post-consumer/recycled content.

The Contractor will use bio-based products. These supplies and materials will be of a quality and type customarily utilized by other Contractors engaged in the profession of providing janitorial services. If a product's ability to meet the standards for cleanliness diminishes, the contractor will recommend an alternative product to the COR. No flammable liquids will be stored in the buildings.

The Contractor is responsible for the removal of Contractor Furnished materials and equipment at Contractor's expense. Contractor Furnished materials and equipment at Contractor's expense will be removed from the building either on the last day of cleaning or last day of the contract. The Government is not responsible for Contractor Furnished materials and equipment.

4.3 SAFETY MEASURES

The Contractor will be responsible for instructing company employees in appropriate safety measures. The Contractor will provide, place and remove appropriate warning signs for wet or slippery floor areas caused by cleaning or waxing applications. Clothes, mops or brushes containing a residue of wax or other combustible material subject to spontaneous ignition will not be stored inside the building. Contractor will provide copies of Safety Data Sheets (SDS's) for all cleaning chemicals used per FAR 52.223-3.

4.4 PRODUCTS/MSDS FORMS

Five (5) days prior to the starting date of the contract, the Contractor will submit to the COR a list giving the name of the manufacturer, the brand name, and SDS's with the intended use of each of the materials the Contractor proposes to use in the performance of the work. Contractor will not use any materials which the COR determines to be unsuitable for said purpose, or harmful to the surfaces to which it is to be applied. Any material which the COR suspects of not meeting safety standards will be tested by a recognized testing laboratory at the Contractor's expense.

4.5 PERSONAL PROTECTIVE EQUIPMENT

1. The contractor will train all workers in the safe operation and use of equipment.
2. Personal protective equipment, including personal protective equipment for eyes, face, head, and extremities will be provided by the Contractor, used, and maintained in a sanitary and reliable condition wherever it is necessary because of hazards or processes encountered in a manner capable of causing injury or impairment in the function of any part of the body.
3. Defective or damaged personal protective equipment will not be used.

SECTION 5 GOVERNMENT-FURNISHED MATERIALS AND SERVICES

5.1 STORAGE

5.2 The Government will furnish secure areas for storage of Contractor-furnished materials. The Contractor will maintain such storage areas to the same standards as similar areas occupied by the Government. The Government will also furnish the following:

- a. Floor mats for exterior entrances and doorways.
- b. Dumpsters for both trash and recyclable materials
- c. Exterior lighting in compliance with EPA standards

5.3 Locked and/or Non-Serviced Rooms: Some rooms in the building are locked for administrative reasons. These rooms will not require services unless left unlocked or a key has been provided to the Contractor. For the rooms where a key is provided, the contractor will lock the door and turn off the lights prior to leaving.

5.4 Safety: The Contractor will be responsible for instructing company employees in appropriate safety measures. The Contractor will provide, place and remove appropriate warning signs for wet or slippery floor areas caused by cleaning or waxing applications. Cloths, mops or brushes containing a residue of wax or other combustible material subject to spontaneous ignition will not be stored inside the building. Contractor will provide copies of Material Safety Data Sheets (MSDS's) for all cleaning chemicals used.

SECTION 6 CONDUCT

6.1 GENERAL

All work under this contract will be performed in a skillful and workmanlike manner. The Contracting Officer may, in writing, require the Contractor to remove from the work any employee the Contracting Officer deems incompetent, careless, or otherwise objectionable, or for theft, possession and/or removal of materials, supplies, equipment, or any Government-owned property.

The Contractor will be responsible for maintaining satisfactory standards of employee competency, conduct, appearance and integrity, and will be responsible for taking such disciplinary action with respect to the employee(s) as may be necessary.

The Contractor will prohibit his/her employees from disturbing papers on desks, opening desk drawers or cabinets, or using telephones or office equipment provided for official Government use.

The Contractor will be notified of non-compliance and will be requested to correct the condition at the Contractor's expense.

The Contractor will not be allowed to have any persons (family members or otherwise) on the premises to either work or accompany the Contractor or his/her employees during performance of the contract. The Contractor may not bring pets into the Federal Offices either.

6.2 SPECIFIC CONDUCT

The following restrictions apply to the Contractor and Contractor's employees:

- A. Smoking: All buildings are non-smoking buildings. The Contractor will not smoke inside the building.
- B. Gambling: The Contractor will not participate in games for money or personal property while on Government property.
- C. Alcoholic Beverages and Narcotics: The Contractor will not be under the influence of, use, or be in possession of any narcotic drug, hallucinogenic, marijuana, barbiturate, amphetamine, or alcohol while entering or on Government property.
- D. Soliciting or Vending: The Contractor will not solicit or sell any items while on Government property.
- E. Firearms: The Contractor will not be in possession of any firearms in any of the buildings.
- F. Pets: Contractor may not bring pets into the buildings.

6.3 MISCELLANEOUS

The Contractor will perform the following services to provide for the safety and protection of building personnel and property against injury, molestation, loss and/or damage from any preventable cause, including, but not limited to fire, theft, espionage, and sabotage:

- A. Report fires and hazardous conditions either in person, by phone, or by note, depending on

severity.

- B. Turn in items found to the COR.
- C. Report any unusual traffic in the parking lots to the COR.
- D. Water faucets or valves will be turned off after the required usage has been accomplished.
- E. Mechanical equipment controls for heating, ventilation, and air-conditioning system are not adjusted by the cleaning crew workers.
- F. Cleaning of carpet, floors, and counter tops will be performed according to manufactures instructions or industry standards.
- G. Protect Government property, buildings, materials, equipment, supplies, records, and data against unauthorized access, loss, or damage.
- H. Make a daily tour on each work-day to ensure that all appliances are shut off or disconnected; that no smoldering, smoking, or burning materials are in trash receptacles or holding areas.
- I. Establish a system for custodial force personnel to report potentially hazardous conditions and broken or slippery floor surfaces, etc.
- J. Prepare reports of accidents and fires and submit them to the COR; maintain and make available all records in connection with protection activities.
- K. In the event of emergency or unusual occurrences adversely affecting the interest of the Government, summon appropriate assistance, such as the fire and/or police department, and immediately thereafter notify the COR.

SECTION 7 SECURITY OF PREMISES

7.1 The Contractor will be issued key cards and/or pin numbers to access the building. These will be issued to individual employees by the district's Administrative Officer and are not to be shared between employees. If an employee is no longer employed by the contractor, that key card must be returned. Any unauthorized personnel in the building or sharing of key cards is a violation of federal law and grounds for immediate termination of the contract.

7.2 The Contractor will be responsible for securing premises upon completion of each service. The Contractor will take the necessary precautions to assure that its employees do not leave exterior doors or windows open upon entry to, during performance of services, and/or exiting from the building. Only the Contractor and the Contractor's employees are allowed in the building outside of normal business hours.

7.3 The Contractor will check to see that exterior doors are locked.

7.4 The Contractor will report to the COR any instance (by specific locations) of having to perform lockup, to turn on exterior lights or to shut windows.

7.5 The Contractor will place an "Out of Order" sign on any plugged toilets, sinks or drinking fountains and report it to the COR.

7.6 The Contractor will ensure that all lights will be turned off after each room or area has been serviced.

7.7 The Contractor will comply with the requirements of this solicitation regarding contract personnel and contractor background checks. Contractors will not be allowed in any Government

building if they have not passed the Federal background check and on-boarding procedures. Procedures for the background checks may begin upon contractor acceptance of the contract. Post background check, the contractor will provide to the COR three (3) days prior to start of work, each employee's full legal name, social security number and driver's license, if applicable, for security access and security training. Work during business hours may be approved by the COR on a case-by-case basis. Upon employee termination with Contractor, Contractor will notify the COR, within 12 hours of termination, employee's full legal name, to remove from security system.

SECTION 9 INSPECTION AND ACCEPTANCE

9.1 INSPECTION AND ACCEPTANCE

(a)The Contracting Officer or the Contracting Officer's duly authorized representative will inspect and accept the supplies and/or services to be provided under this contract.

(b)Inspection and acceptance will be performed randomly at the USDA Forest Service, Central Coast Ranger Station.

9.2 GOVERNMENT INSPECTION

The Government will visually inspect the Contractor's performance on a random basis under this contract to ensure compliance with contract guidelines. The COR will record inspection observations and will document deficiencies through a written inspection report provided to the Contractor. When unacceptable performance is observed, the COR will meet with the Contractor's on-site supervisor to review the inspection report and ensure that the Contractor has an understanding of the unacceptable services. The preferred method to resolve deficiencies is to allow re-performance to correct the deficiencies. The Contractor will be provided with the opportunity to correct substandard performance within one business day. When substandard performance is not corrected within the specified timeframe or the Contractor refuses to re-perform the service, the unsatisfactory service is then logged as a deficiency.

9.3 PERFORMANCE OBJECTIVES

The Contractor service requirements are summarized into performance objectives that relate directly to the essential services provided. The stated performance thresholds are the minimum acceptable levels of service for each stated requirement. All aspects of the Contractor performance are subject to Government surveillance, and absence of any contract requirements from the Performance objectives identified below will not detract from the enforceability, nor limit the rights or remedies of the Government under other contract clauses.

Performance Objective	PWS Paragraph	Performance Threshold	Method of Surveillance
Basic Cleaning Services	Section 2	Not to exceed 3 valid customer complaints per month.	Customer Complaint, facility manager, or periodic inspection

Periodic Cleaning Services	4.1	Not to exceed 1 valid customer complaint per year.	Customer Complaint, facility manager, or periodic inspection
Emergency and Security Services	7.1 through 7.6	Zero Defects	100% Inspection
Contractor Quality Control Plan	9.4	Submitted with offer	100% Inspection

9.4 CONTRACTOR QUALITY CONTROL PLAN

Failure by the Contractor to implement the approved plan and pursue it diligently from the commencement of the contract may be considered grounds for default.

SECTION 10 REPORTING REQUIREMENTS

The Contractor will prepare and submit the following deliverables in accordance with the schedule below (documents should be submitted to Contracting Officer (CO):

Item No.	Description	Copies To	Due Date
01	Inspection Checklist	COR	Daily/Weekly: Janitorial Closet
02	Service Call Log	COR	Daily, As deficiency occurs

Inspection Reporting

The contractor will utilize the Inspection Checklist, as specified above. The checklist should show the status of all work completed daily, weekly, and monthly, and initialed at completion.

Service Call Log - Deficiency Reports

The contractor will submit deficiency reports to the Service call log daily, as the deficiency occurs or is reported. Deficiency reports should be addressing those areas not cleaned and the reasons for not cleaning them. Deficiencies include but are not limited to the following: deficiencies in building equipment or damage to the building such as defective ballast; missing/broken/inoperable soap dispensers; stopped-up urinals or commodes; in adequate government provided supplies. Likewise, the government will use the log to report concerns to the janitorial staff.

SECTION 11 CONTRACT ADMINISTRATION DATA

A post award conference with the successful offeror is required. It will be scheduled and held within 15 days after the date of contract award. The conference will be held at the Central Coast Ranger Station.

DESIGNATION OF CONTRACTING OFFICER'S REPRESENTATIVE

The Contracting Officer designates the Contracting Officer's Representative (COR).

The COR is responsible for administering the performance of work under this contract. In no event, however, will any understanding, agreement, modification, change order, or other matter deviating

from the terms of this contract be effective or binding upon the Government unless formalized by proper contractual documents executed by the Contracting Officer prior to completion of the contract.

The Contracting Officer should be informed as soon as possible of any actions or inactions by the Contractor or the Government, which will change the required delivery or completion times stated in the contract, and the contract will be modified accordingly. (This does not apply to individual task assignments which were issued by the COR provided they do not affect the delivery schedule or performance period stated in the contract.)

On all matters that pertain to the contract terms the Contractor must communicate with the Contracting Officer. Whenever, in the opinion of the Contractor, the COR requests effort outside the scope of the contract, the Contractor should so advise the COR. If the COR persists and there still exists a disagreement as to proper contractual coverage, the Contracting Officer should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in nonpayment or necessitate submittal of a contract claim.

CONTRACTOR'S REPRESENTATIVE

The Government may, at its option, suspend work with full count of contract time continuing, if the Contractor fails to provide a Contractor's Representative (1) conversant in the English language and (2) able to read and understand the contract.

SUPERVISION

The Contractor will arrange for satisfactory supervision of the contract work. The Contractor or one of its supervisors will during regular business hours, to receive notices, reports, or requests from the Contracting Officer or COR. The Contractor will provide in writing to the COR at least five (5) days prior to the contract starting date the names, telephone numbers, and addresses of on-site supervisors. The term "on-site supervisor", "alternate on-site supervisor", "superintendent", or "Contractor Representative" means a person designated in writing by the Contractor who has the authority to act for the Contractor on a day- to-day basis at the work site and to accept and sign for notices of deductions, inspection reports, and all other correspondence on behalf of the Contractor.

PAYMENT

Payment will be made monthly for janitorial services that have been satisfactorily provided. The Contractor will submit an invoice each month along with the completed inspection checklist from the Quality Control Plan. The Government will review the performance as compared to contract standards, the Quality Assurance Plan and the Performance Objectives. Monthly payments to the Contractor will be reduced for logged deficiencies, as described in the Inspection clause. Deductions for deficiencies will be calculated as 1/30th of the unit price for each day the Contractor fails to correct the deficiency.

INVOICE PROCESSING PLATFORM

NOTE: The paragraph below replaces the paper invoice copies requirement referenced on FAR 52.212-4 (g) invoices.

The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP). The contractor must follow the instructions on how to register and submit invoices via IPP as prescribed in the previous communications from USDA and Treasury. All invoices are to be submitted via the electronic Invoice Processing Platform. This is a mandatory requirement initiated by the U.S. Department of Treasury and you can find more information at this website:

<https://www.ipp.gov/index.htm>.

Please make sure that your company has registered at

<https://www.ipp.gov/vendors/enrollment-vendors.htm> to establish your account.

SECTION 12 SPECIAL CONTRACT REQUIREMENTS

12.1 Background Check Requirement for Personnel:

The contractor will ensure that all required personnel/employees respond within one week of each prompt for action or information (initial or additional) as part of the HSPD-12 Background Investigation requirement and its associated maintenance. For each member of the Contractor's personnel/ employee(s) to access the Government facility unaccompanied by the Government (i.e. for overnight cleaning), submittal to the mandatory background investigation includes the provision of pertinent information to the Government, fingerprinting, and response to any queries from the Person Model point of contact. Maintenance activities may include but may not be limited to mandatory annual completion of a short information security training exam, materials for which will be available online or provided via email or in hard copy by the CO or COR.

When the premises covered under the contract require or utilize Linc Pass keycards for building entry, the Contractor's personnel/ employees must also visit a USDA Activation Center to obtain a physical LincPass keycard. Visitation of an Activation Center is not required for any Contractor's personnel employees whose worksite buildings utilize traditional keys or non-Linc Pass keycards.

Failure of the Contractor's personnel/ employee(s) to respond within one week of receiving any prompt in the background investigation process may result in the issuance of Cure Notices, requirement of removal of the Contractor's personnel/ employee(s) from the premises, or termination of the contract.

As required through mandate or policy changes, additional requirements to those listed may be added to the contract. Alerts regarding requirements needing attention are generally sent to the Contractor via email to the address(es) provided during the HSPD-12 Background Investigation application.

12.2 Keys/Key cards:

The Contractor will establish and implement methods to ensure that all keys/ keycards issued by

the Government are kept secure in the Contractor's possession are not used by unauthorized persons. No keys/ keycards issued by the Government are to be duplicated. It is the Contractor's responsibility to ensure any security access codes are secured in the contractor's possession and not to be used by unauthorized persons.

A. The Contractor will be required to reimburse the Government for replacement of locks or re-keying because of Contractor loss of keys. In the event a master key is lost or duplicated, the Government will replace all locks and keys for that system, and the total cost will be deducted from the payment due the Contractor.

B. The Contractor will report the occurrence of a lost key/ keycard to the COR or CO no later than the next business day.

C. It is the responsibility of the Contractor to prohibit the use of keys/ keycards issued by the Government to any person other than the Contractor's employees. Contractor's employees are prohibited from opening locked areas to permit entrance by other people (except for other Contractor's employees).

12.3 On Boarding and Background check process

USDA FOREST SERVICE REQUIREMENTS

All Contractor employees working inside a federal building will be required to complete computer based online training courses. Once the new contractor employee's information has successfully been entered into the onboarding tracking software, they will be contacted by email. The emails will contain links to websites where the employee can complete the courses. Each course should take 45 to 60 minutes to complete. Contractor employees will need to have access to a computer to complete all training online.

Course Name	Frequency	Method of Training	Length of Training	Completion Date
*Information Security Awareness	Annually	AgLearn	60 minutes	1 year since last completion date
Section 508	Annually	AgLearn	60 minutes	45 days after assignment
USDA Records Management	Annually	AgLearn	60 minutes	60 days after assignment

* This course needs to be completed within 7 days of receipt of the email notification. The course must be completed first. Failure to complete this course in the time allotted will result in a termination of the onboarding process. Once the course is complete the background check process may start.

ALL FEDERAL AGENCIES REQUIREMENTS

Tier 1 Background Investigation Requirements for Awarded Contracts

- Declaration of Federal Employment (OF306)
- National Background Investigation Services (NBIS) security questionnaire
- Fingerprinting (if you have not already enrolled for a LincPass or completed Field Print).

These actions must be completed within 14 days. Extensions will be granted on a case-by-case basis.

OF306

The OF306 is an encrypted (password-protect) PDF, with instructions, to be sent to the government email provided. The PDF should have password-protect for viewing, not just editing, otherwise data is just as open as not password-protecting it.

NBIS Security Questionnaire

The Background investigation will be initiated through the following internet browser address: <https://myinvestigation.nbis.mil/subjectportal/> A user ID and temporary password are issued through separate emails from the NBIS system.

Fingerprinting

Depending on the location of the Contractor employee the fingerprint location maybe multiple hours driving distance away. Total travel time and finger process may take 4 to 8 hours total.

Fingerprinting will be done in one of these ways.

- Enrollment within USAccess for a credential (LincPass)

Notify PIV Sponsor if you have already been fingerprinted for your credential or if you plan to have an enrollment appointment within the next 14 days.

- Field Print

If this method is used, you are required to schedule an appointment within 7 days.

12.4 USE OF BIOBASE PRODUCTS

The Contractor must comply with Section 9002 of the Food, Conservation and Energy Act of 2008; Section 9002 of the Farm Security and Rural Investment Act of 2002 (FSRIA); Executive Order (EO) 13514, "Federal Leadership in the Environmental, Energy, and Economic Performance" which retains the requirements of EO

13423; Presidential Memorandum, “Driving innovation and Creating Jobs in Rural America through Biobased and Sustainable Product Development”; and the Federal Acquisition Regulation to provide biobased products.

The Contractor will utilize products and material made from biobased materials to the maximum extent possible without jeopardizing the intended end use or detracting from the overall quality delivered of the end user. All supplies and materials will be of a type and quality that conform to applicable Federal Specifications and standards. All supplies and materials to be used in the performance of work described herein are subject to the approval of the Contracting Officer.

The following is an example list of products that may be used in this contract for which biobased products or recovered materials are available. The list is not all inclusive. It is desirable that vendors be able to supply the greatest number of biobased products listed meeting health and environmental specifications.

Janitorial cleaning products and supplies

The Contractor will comply with the provision of FAR 52.223-1, Biobased Product Certification, FAR 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts, and FAR 52.223-4 Recovered Material Certification.

Guide to minimum biobased content:

<http://www.biopreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml>

EPA’s list of designated products under the Comprehensive Procurement Guidelines:

<http://www.epa.gov/waste/conserve/tools/cpg/products/index.htm>

PUBLIC OFFICIALS NOT PERSONALLY LIABLE

There will be no personal liability upon the Contracting Officer or officer in charge, their agents or employees, for any act performed in the discharge of any duty imposed or the exercise of any power or authority conferred upon them, by, or with the scope of the contract, it being understood that in all such matters they act solely as agents and representatives of the Government.

TRASH AND REFUSE MATERIAL

The Contractor will remove all of his/her own trash and refuse from the contract area.

STORAGE OF MATERIALS AND EQUIPMENT

Materials will be stored to assure the preservation of their quality and fitness for work. All storage areas approved by the Government will be restored to satisfactory conditions at the Contractor's expense.

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference

Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.212-4
- 52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
- 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
- 52.222-50 Combating Trafficking in Persons (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.222-50
- 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
- 52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
- 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
- 52.233-3 Protest After Award (Sep 2025)
- 52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
- 52.240-91 Security Prohibitions and Exclusions (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.240-91
- 52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☐ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☒ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with

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- Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
 - ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
 - ☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
 - ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
 - ☐ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
 - ☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
 - ☐ Alternate III (Nov 2025) of 52.219-9.
 - ☐ Alternate IV (Nov 2025) of 52.219-9
 - ☐ 52.219-14 Limitations on Subcontracting (Nov 2025)
 - ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
 - ☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
 - ☒ 52.222-3 Convict Labor (June 2003)
 - ☒ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
 - ☐ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
 - ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
 - ☐ 52.222-37 Employment Reports on Veterans (Nov 2025)
 - ☐ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
 - ☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
 - ☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:

It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
Janitor	\$17.32 -- \$5.55

- ☒ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)

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- ☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
 - ☐ Alternate I (May 2008) of 52.223-9
- ☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services (Nov 2025)
- ☐ 52.224-3 Privacy Training (Jan 2017)
 - ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.225-3.
 - ☐ Alternate III (Nov 2025) of 52.225-3.
 - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☐ 52.237-3 Continuity of Services (Jan 1991)
- ☐ 52.240-92 Security Requirements (Nov 2025)
- ☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
 - ☐ Alternate I (Apr 2023) of 52.247-64.
 - ☐ Alternate II (Nov 2021) of 52.247-64

Other Applicable Clauses

- 52.217-8 Option to Extend Services (Nov 1999)
30 calendar days prior to contract expiration
- 52.217-9 Option to Extend the Term of the Contract (Mar 2000)
(a) 30 Calendar days prior to contract expiration and 60 days
(c) five years.
- 52.242-14 Suspension of Work (Apr 1984)
- 52.245-1 Government Property (Sep 2021)

AGAR Clauses

- 452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

AGAR 452.203-72 Unenforceable Supplier Terms

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

- (1) Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.
- (2) Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

(b) Applicability. When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract shall govern and supersede any supplier terms in all cases.

(c) Authorization Required. Notwithstanding any other provision, no supplier terms shall be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.

(d) Unenforceable Terms. Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:

- (1) Requires the Government to pay future fees, penalties, interest, legal costs, early-termination fees, cancellation fees, minimum purchase commitments, true-up payments, seat-count minimums, usage minimums, continued-use charges, or any other financial obligation not expressly authorized by the contract.
- (2) Requires the Government to indemnify the contractor or any other entity.
- (3) Restricts the Government's ability to obtain similar supplies or services from another source.
- (4) Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.
- (5) Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.
- (6) Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.
- (7) Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.
- (8) Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.
- (9) Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.
- (10) Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.
- (11) Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.
- (12) Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged non-payment, alleged breach, automated security triggers.
- (13) Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.
- (14) Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.
- (15) Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.

- (16) Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.
 - (17) Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).
 - (18) Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.
 - (19) Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.
 - (20) Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.
 - (21) Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.
- (e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier agreement or through the use of clickwrap, browse wrap, "I agree" mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.
- (f) End user. The supplier agreement shall bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it shall not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.
- (g) Law and disputes. The supplier agreement is governed by Federal law.
- (h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.
- (i) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.

(j) Arbitration. Binding arbitration shall not be used unless specifically authorized by agency guidance.

(k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).

(l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.

(m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.

(n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.

(p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.

(q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.

(r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

(End of Clause)

452.204-70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment.

(End of Clause)

452.204-71 Personal Identity Verification and Workforce Integrity of Contractor Employees (Apr 2026)

(a) Compliance with PIV Requirements. The contractor must comply with the personal identity verification (PIV) policies and procedures established by the United States Department of Agriculture (USDA) Directives 4620-002 series, Homeland Security Presidential Directive 12, and any implementing guidance issued by the Contracting Officer. The contractor must appoint a representative responsible for PIV compliance and must maintain a current list of employees eligible for a USDA LincPass or otherwise authorized to perform work under this contract.

(b) PIV Sponsor Availability. The PIV Sponsor for this contract is the designated Government point of contact identified in the contract, typically the COR unless otherwise specified. The Government will notify the contractor of any changes. The contractor remains responsible for meeting all PIV obligations regardless of changes in sponsor availability.

(c) Contractor Workforce Integrity and Accountability. The contractor is fully responsible for ensuring that all individuals performing under this contract are properly vetted, eligible for access, authorized to perform the work, and accurately represented. At a minimum, the contractor must implement lawful and effective internal controls to:

(1) Verify the identity, work authorization, and qualifications of all personnel assigned;

(2) Ensure only the individuals presented to USDA for PIV enrollment or identity verification perform work;

- (3) Detect and address indicators of identity fraud, unauthorized substitution, or other workforce integrity risks; and
- (4) Ensure continuous oversight of personnel, including remote workers, in accordance with any reporting requirements specified in the Contract.

(d) **Mandatory Removal and Replacement.** If the Government determines that a contractor employee fails to meet eligibility, security, integrity, or performance requirements, the Contracting Officer may direct the contractor to remove the individual from performance. The contractor must:

- (1) Remove the employee immediately upon notice;
- (2) Provide a qualified replacement at no additional cost to the Government; and
- (3) Ensure continuity of operations so as not to impact mission requirements.
- (4) Failure to promptly remove or replace employees when directed may result in remedies including withholding payment, termination, or other actions authorized under this contract.

(e) **Impact on Contractor Performance.** Contractor compliance with this clause, including timely removal and replacement of personnel, adherence to PIV requirements, and maintenance of workforce integrity, is a material requirement of this contract. Incidents of identity discrepancies, failure to maintain an eligible workforce, submission of personnel who do not match verified identities, unauthorized substitutions, or failure to comply with Government direction may result in termination and will be documented in the contractor's performance assessment and reflected in the Contractor Performance Assessment Reporting System (CPARS).

(f) **Subcontractor Applicability.** The contractor must include this clause in all subcontracts requiring routine unaccompanied physical access to a Federally controlled facility and/or routine unaccompanied access to a Federally controlled information system. The contractor is accountable for ensuring subcontractor compliance.

(g) **No Government Direction of Hiring Practices.** Nothing in this clause authorizes the Government to direct the contractor's internal hiring processes or require the disclosure of personal information beyond what is authorized by law, regulation, or contract terms. The contractor remains solely responsible for determining lawful methods to meet the requirements of this clause.

(End of Clause)

Solicitation Information

Award Type

It is anticipated that a firm-fixed price contract consisting of one (1) one-year base period and four (4) one-year option periods shall be awarded as a result of this synopsis/solicitation. The total duration of this contract shall not exceed five (5) years.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

FAR 52.212-2 Evaluation - Commercial Products and Commercial Services (Nov 2025)

In a separate document from the Schedule of items offer, address the evaluation criteria questions below and include your response in your submission.

(A) Evaluation factors. The Government will award a contract resulting from this solicitation to the Offeror whose offer submission will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

1. Relevant Past Performance History:

Provide 3 years of references specific to providing Janitorial Cleaning Services. Include the dates of performance, the company name, the name of contact person, and their telephone number.

References will be contacted. Within the past 3 years include any contract that was terminated for (convenience and or cause) or cancelled and address why the contract was terminated or cancelled.

If part of the experience period was doing business under a different business name, identify that business and period separately.

IT IS CRITICAL if you are subcontracting any part of this project that you identify the same information for the sub-contractors throughout the evaluation questionnaire. Evaluation is looking at those performing the janitorial services as well as who administers the contract.

Provide a listing of your projects for the past three-year period that most closely relate to this type of work.

2. Quality of Services:

Demonstrated ability to perform services in accordance with the contract specifications.

Conformance to good standards of workmanship. Offerors shall submit their Quality Control Plan and how they intend to meet Government performance standards for each task and subtask associated with this contract.

The Quality Control Plan (QCP) should recognize the responsibility of the Contractor to carry out its quality control obligations and contain measurable inspection and acceptance criteria corresponding to the Performance Work Statement (PWS). The QCP shall specify in detail:

- How quality will be monitored to ensure performance standards are met.
- How the work will be supervised.
- Identify the personnel responsible for performing quality control.
- How results of the monitoring will result in quality performance.
- Create a checklist for inspection of the building that covers all services stated in the "Performance Work Statement"
- A system to ensure that the Contractor's employees are notified of any deficiencies in their area of responsibility.
- A plan to monitor and correct customer complaints.
- A plan for immediately forwarding customer complaints that are not the responsibility of the Contractor to the COR.

3. Technical Approach

- a) Provide a listing of your in-house capabilities and the tasks if you intend to subcontract. Include a list of the facilities (for storage of supplies related to this project), supplies, tools and/or equipment you intend to use.
- b). Performance, schedule and staffing: List the names and experience of the employee(s) with appropriate skills and skill levels to accomplish the project with regard to the personnel qualifications. If staffing is not available, be specific as to how your hire practices are to ensure contract specifications are met.

Factors 1 through 3 will be evaluated on a point system 0 to 5. 5 being the highest possible value.

4 USE OF BIOBASED PRODUCTS

As required by FAR 52.223-2, biobased products must be used in performance of this contract. Contractor shall describe current or past performance experience with the use of biobased products. For the purposes of this contract, the Contractor shall include a list of products intended for use on the Gardiner Ranger Station Janitorial. Identify each product's biobased Potent percentage and the product's intended use.

Table. Biobased Assessments

Rating Description

Acceptable - Proposal clearly states the utilization of biobased products, list of products, certification, and percentage.

Unacceptable - Proposal does not clearly state the utilization of biobased products, does not include a list of products, lacks certification, and is lacking in clear understanding of operation plan.

5. Price: The Government will use the pricing provided in Schedule of Items. It is the Government's intent to determine the reasonableness of the offer, the offeror's understanding of the work and the offeror's ability to fulfil the contract.

The Government will issue a contract to the offeror quote conforms to the solicitation requirements, and which offers the best value to the Government.

(B) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

IT IS THE OFFERERS RESPONSIBILITY TO SUBMIT THEIR BEST OFFER WITH ALL REQUIRED DOCUMENTATION.

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Questions shall be submitted via email to Jared.Machgan@usda.gov and are due no later than May 14, 2026, at 17:00 PM Pacific Time. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

Instructions to Offerors—Commercial Products and Commercial Services

Offer will submit their quote along with their technical response and past performance via email with three separate attachments: **(1) Schedule of items, (2) technical response, and (3) Relevant Janitorial Cleaning past performance**, no later than May 18, 2026 1700 PT.

Email offers to Jared Machgan jared.machgan@usda.gov

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

- (1) The solicitation number.
- (2) The name, address, telephone number of the Offeror.
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator.
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a post award debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

- (2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.
- (3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.
- (4) A summary of the rationale for award.
- (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.
- (6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☒ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☒ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)

- ☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

- 52.217-5 Evaluation of Options (Nov 2025)
- 52.237-1 Site Visits (Apr 1984)

AGAR Provisions

- 452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (5) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (6) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.
(End of Provision)

NOTICE FOR FILING AGENCY PROTESTS

United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.

6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.